

FOR THE DEFENCE OF CANADA

**Issued by
The Military Service Council
October, 1917**

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I.

There is no serious suggestion among British people that Great Britain could have remained neutral in the Great War which broke across Europe three years ago and which still fills the earth with devastation and mourning. By British people one means not only those of English speech and British origin, but all of any race or tongue or creed who salute the flag, and enjoy the heritage of freedom which belongs to British citizenship. The mother country had an understanding with France which could not be ignored; an obligation to Belgium which could not be repudiated without dishonor. In the conventions and understandings to which the British Empire was committed there was no menace to any other nation. The object was not to make war but to keep peace; not to divide or convulse Europe but to assure international security and the honorable and happy independence of all peoples.

II.

It is true that the British navy was maintained in strength, vigor and efficiency, but the navy was not an instrument of aggression nor even the guardian of exclusive paths for British commerce across the seas. It was the bulwark of freedom; the police force of all nations. The trade of the Empire had no other protection. The Empire itself had no other wall of defence. There was no British army to challenge other communities nor any thought of aggression or conquest. Indeed it is certain that the people of Great Britain and the Dominions could not be united in support of a war for territorial extension or a wanton attack upon the independence of any other country. There may be doubtful chapters in British history. There may have been ages when Great Britain was willing to live by the sword; when her statesmen strove for dominion over other lands and peoples. But with the Victorian era a new spirit entered into British councils. Her statesmen thought of the sword only as a necessary guarantee of British security. They

gave earnest support to all movements designed to settle international differences by conciliation and arbitration. They were so “slow to anger” that envious and restless neighbors persuaded themselves that the old might and puissance of Imperial Britain had gone forever.

III.

There is no better evidence of the purity of British motives and the disinterestedness of British action than the complete unity of the Empire in the desperate struggle in which it is now engaged. If there could be better evidence it lies in the fact that the United States, removed for a century from the quarrels of Europe, has entered the conflict, in sheer revolt against Teutonic aggression and driven by a noble impatience with actions that have destroyed the reign of law among nations and put earth and heaven to shame. Thus we have not only the British people, so seldom united in war, animated by a common purpose, but also the American Republic, nurtured in love of peace and distrustful of the old world’s ideals and ambitions, inspired and united by a common sense of danger and a common concern for freedom and civilization.

IV.

It was manifest even before war was declared that there would be no indecision or division in Canada. We knew that with the mother country at war we would be at war. We could not be neutral and remain within the Empire. There was no apprehension of compulsion by the Imperial Government. There was certainty of compulsion by Germany if our attitude was not defined and unequivocal. We had to proclaim independence and neutrality or pledge our manhood and resources to maintain the security and integrity of the Empire. If we had done otherwise than we have we would now be skulking in the world’s byways and writhing under the contempt of decent peoples. Who suggests that in time of peace we can sing God save the King, boast of our British citizenship and send our trade on the seas under protection of the British navy, and do nothing in time of war? There could, however, be no greater mistake than to think that we are in the war at the command of Great Britain or purely to sustain British interests. We are in the war primarily to defend and maintain freedom and self-government in

Canada. At least Great Britain is fighting for Canada as surely as Canada is fighting for Great Britain.

V.

It is almost inconceivable that Germany could have doubted what our decision would be. We acted involuntarily and instinctively. There was unanimity in the press and in Parliament. We did not think of degrees of obligation or conditions of alliance. In Quebec there was rejoicing over the compact between Britain and France, while in the English provinces we saw national and Imperial value in a union of French and English, in defence of free institutions. We believed that through the common sacrifices of war would come that happy understanding between the races in Canada which has been the aspiration of Canadian patriots for a century. We took deep satisfaction in the prospect that France, in alliance with Britain, would emerge from a long humiliation with the "lost provinces" recovered and the ancient national dignity restored. Hence we said to the mother country as Jehoshaphat said to the King of Israel, "I am as thou art and my people as thy people and we will be with thee in the war." For her as for us the choice was between sacrifice and dishonor, and when these are the conditions honor and sacrifice are the immemorial obligation and inheritance of the British people.

VI.

No one foresaw the duration or the magnitude of the conflict. Armageddon was a vision of poets and prophets. The 20th century, inspired by enthusiasts and instructed by economists, believed that the world had grown soft and "practical." We were told that war lords were legendary figures of an evil past. It was a common belief that no nation could command the resources for a long struggle. It was said that finance and commerce, interlocked and internationalized, would compel a speedy cessation of hostilities by exhaustion of the combatants. We were assured that the industrial armies of the workshops could not be mobilized for mutual destruction. To the few who were wiser we would not listen. Possibly much of their wisdom was rooted in apprehension and suspicion. There never was so much of mercy and charity and goodwill and brotherhood among men as

during the first years of the century. We had the Hague tribunal and treaties of arbitration. We had international law and worldwide organizations for the common protection and enrichment of mankind. It is not strange, therefore, if men believed that there was a happy prospect of enduring peace or if there was general impatience with those who spoke of war and preparation for war.

VII.

It is not necessary to consider at length the immediate causes of the war or to marshal the evidence in proof of Great Britain's disinterested and resolute endeavor to avert the conflict. Few of the great wars of history stand the cold, unimpassioned scrutiny of later generations. We have, however, overwhelming evidence that Germany plotted and prepared for sovereignty in Europe and an unchallenged primacy among the nations. The world has been astounded by the revelation of German motives, the inflexible persistence of German policy, the extent and efficiency of German preparation. It was only by the mercy of God and the martyrdom of Belgium that France was not brought to her knees before she could organize her valiant defence or the heroic British regiments unite with the French legions to check the advance on Paris. While time lasts the betrayal of Belgium will have shameful pre-eminence in what John Morley calls "The sombre tragedy of human history." Nor would Great Britain have escaped lasting dishonor if she had failed in fidelity to France and Belgium at any cost of life and treasure. It is not necessary to argue that the violation of Belgian neutrality alone explains the British declaration of war upon Germany. That cause was adequate, if there were no other, but there were other considerations of direct and tremendous consequence to the British Empire.

VIII.

Looking to the future British statesmen could not doubt that Germany, triumphant over France and Belgium, with power of dictation over Russia, with mastery of Turkey, and with Vienna in subjection to Berlin, would organize its resources and consolidate its energies for an attack upon Britain and her Dominions. Indeed all that has been disclosed shows clearly that the

destruction of Great Britain and partial or complete suzerainty over the self-governing British nations was the ultimate object of German policy. With a land army unequalled in Europe the Kaiser set himself to rival the British navy and the British merchant marine. A great navy was not required to ensure the political security or protect the commerce of Germany. Only by naval power could the British Empire exist. When we think of the achievements of the Germanic alliance against a world in arms we realize what a mortal hazard the British Empire would have faced in single combat against enemies enriched by the spoils of victory over France, Russia and Belgium, and with all the smaller nations of Europe reduced to submissive neutrality. It was vital, therefore, that Britain should enter the struggle not only by virtue of honorable alliances but to guard her very existence. Moreover, if Britain had hesitated at the outset it is certain that her position would quickly have become intolerable. In a few weeks or months she would have had to send her fleet to sea and organize her manhood for defence. Delay, resulting from foolish confidence or timid counsels, would have been dangerous and possibly fatal to all the vital interests which depend upon a solvent and powerful British Commonwealth.

A thousand years scarce serve to form a state;
An hour may lay it in the dust.

IX.

Whether or not there was lack of vigilance or failure in preparation by Great Britain, there is nothing more remarkable in human history than the achievements of the British people in the war. Few doubted that the navy would be vigilant and invincible. It was not feared that the old historic regiments would fail in valor or endurance. But there is nothing even in British annals so wonderful as the voluntary enlistment of an army of four millions. If only as a measure of the danger which threatened the Empire the figures are impressive. Men would not have recruited in hundreds of thousands if they had not felt that the institutions they cherished, even their very households, stood in the shadow of death. No doubt a flame of wrath swept over England as the revolting story of German brutality in Belgium was unfolded, but a living, conscious sense of actual danger to the Empire was the moving impulse to British action. The tremendous voluntary enlistment is only rivalled as a phenomenon in British history by the final

adoption of the principle of compulsory service. It was not only in Canada that this method of recruiting was regarded with disfavor. For generations compulsion for military service has been repugnant to the genius of British institutions. It was held to be the essential basis of the militarism of continental countries. The conviction or prejudice which obtained in England was as deeply rooted in the United States. A great standing army was treated in both countries as incompatible with the ideals of a free people.

X.

In framing the constitution the fathers of the American Republic were chiefly concerned to repose power in Congress and to establish conditions under which a military dictatorship would be forever impossible. Across the world for a century fell the shadow of Napoleon. Behind stood the sinister figures of ancient dictators and despots. During the American Civil War the draft produced disaffection and riot in the North, while Lincoln was permitted to exercise autocratic power because he held his authority from "the people." There was confusion of thinking through facts of history which had no validity under democracy, and sincere devotion to theories and prejudices which challenge the basic ideals and principles of popular government. A writer in *The London Times Literary Supplement*, discussing "The ways of Revolution," said, "In modern times democracy has almost invariably had the best of the fighting. France herself was never led to defeat by a Republican Government; Waterloo and Sedan were lost by her Emperors. Swiss history is one long tale of democratic success in defence; two Dutch provinces defied the arms of Philip II., and thirteen American colonies the might of the British Empire. Democracy is more prone to suicide than liable to conquest."

XI.

It is idle to suggest that compulsion should have been applied in Great Britain when the war began. The certain result would have been resistance and disorder. The nation would have been weakened, divided, disabled for the mighty task before it. Only actual experience and the undesirable consequences of unregulated enlistment established the necessity for

selection and made compulsory service possible. Railway workers, coal miners and various classes of skilled mechanics had to be brought back from the trenches. It was found necessary to reserve and organize labor for the shipyards and the munition factories. Agriculture had to be stimulated to the utmost. For a time there was a degree of industrial confusion, and under-production of essential war materials because men had joined the colors who could give better service to the Empire in the shops and mines than they could give in the field. It was essential that transportation should be efficient and the armies well fed and well equipped if battles were to be won against the long preparation, the scientific machinery and the accumulated war stores of Germany. Hence selection became necessary in order that the industrial forces should be competent and adequate and organized to secure the maximum of production. Unexpected revelations of German brutality and ruthlessness affected the thinking of multitudes of the British people. They began to realize that all the energies and resources of the kingdom must be employed if victory over the Germanic alliance was to be achieved. There was reason to rejoice over the results of voluntary recruiting. What had been done was magnificent. But it was recognized that there was still man-power available and that the situation required the enrolment of every citizen who was physically equal to military service, and engaged in activities less vital to the security of the State. Great Britain adopted every expedient to secure recruits before the selective draft was applied. It was found that the voluntary system was costly, partial and undemocratic. Enlistment was uncertain, haphazard and uneven. Many incidents, when appeals for recruits became strident and coercive, were repugnant to national self-respect and national dignity. Through adversity Great Britain discovered that equality of service and sacrifice is the essential basis of democracy. Under the system of National Service there is no distinction of race or creed or class or position. There is restriction upon freedom but only that the State may be preserved and the citizen secured in life and liberty, under the flag of his choice and in the land of his fathers.

XII.

In the light of history the ready submission of the United States to compulsory draft when peace with Germany could no longer be maintained is remarkable. If the Republic had been among the original combatants it is

inconceivable that the draft at the outset would have been sanctioned. There is nothing in the history of the Revolutionary War, the war of 1812 or the Civil War to suggest that the United States would raise armies by compulsion while the forces required could be secured by the voluntary system. Nearly three years elapsed before the statesmen at Washington resolved to engage in the great struggle between freedom and despotism. It is not necessarily a reproach to the American people that there was long delay before friendly relations with Germany were severed. A divided nation cannot strike with all its strength. Until the people were substantially united compulsion was impracticable and dangerous. Through the patience and wise dealing of the President and the arrogance, insolence and devious manœuvring of Germany a common national feeling was finally developed upon which Mr. Wilson could rely for support in all measures necessary to secure appropriations, raise armies and ensure sympathetic and effective co-operation between the Government and the people. Supported by the national feeling the President was able to establish national service and save his country from the waste, strain, clamor and inequity of raising armies by voluntary appeal.

XIII.

The United States was in a position to profit by the experiences of Britain and Canada. It had knowledge of the disadvantages of the voluntary system as revealed in the British countries and freedom from the illusions which delayed and embarrassed the original combatants. We hardly yet realize what a revolution in opinion was necessary before the draft could be applied in Britain or the United States. We have a new revelation in democracy which would have come slowly, if at all, if the war had gone more prosperously for the Allies. It would not have come had the war ended in one or two campaigns. Sheer military necessity chiefly explains the change in popular feeling. At least in Britain and Canada the demand for compulsion became so general and formidable that the Governments could not resist. Jean Jaures, an extreme Socialist and idealist, argues that the rooted objection to national service which has been so common in democratic countries finds its support in the spirit of caste and the vested interests of a class who cling to the idea of commanding a great army, segregated from the nation in a world of its own, with its own laws, its own

pomp and circumstance, rather than of accepting their position as the leading citizens in an armed nation. He insists that “just as there is no power more majestic than that of the national will embodied in law, so there is no army more powerful and more capable of endowing its leaders with moral authority and prestige, if they are in harmony with it, than an army which is the armed nation itself, inspired with the determination to defend its independence and organized for the purpose.” Events justify Jaures and go far to establish national service as the sound and necessary military system for a democracy at war. The feeling that the army necessarily constitutes a separate class is dying. So is the idea that only those who choose to bear arms are responsible for the national safety. Passing, too, is the notion which divides armies into free men and “conscripts” and regards compulsory national service as destructive of individual freedom and personal independence.

XIV.

Napoleon conscripted for aggression and conquest. Under National Service Republican France has had freedom from internal convulsions and Chauvinistic military adventures. In defence the French people have made sacrifices of blood and treasure beyond computation. But for nearly half a century, notwithstanding the brutal arrogance and avarice of Prussia in 1870, they kept the peace themselves and were among the active forces for peace in the councils of Europe. In Germany national service is not the “Will of the people,” but the instrument of rulers lusting for dominion and intolerant of the privileges and ideals of democracy. If France had trusted to the voluntary system she would have been overcome in 1914, before her forces could have been organized to resist the German attack. We reach false conclusions because we think of the origin of “conscription” rather than of the equity of national service. A democracy chooses its rulers; an autocracy commands its subjects. In France and Germany we have the conflicting ideals of an autocracy organized for attack and a democracy organized for defence. A looser military organization in France would have ensured the success of the attack. Failure to arm the nation would have been equivalent to self-destruction. Where the power to command, without assent of the people, exists, democracy has not come to birth. Where democracy rejects the supreme obligation of citizenship it is not full born. One may not

think that the world must “stand to arms” forever but until the free democracies develop the power and the spirit to disarm autocracies and command peace, enduring peace will not prevail. Whether or not any league of nations will ever “fight for peace” only the gods know. From the welter of blood and ruin upon which we look to-day it would be a dark prospect if we could not cherish the vision.

XV.

As has been said there was no thought of a draft in Canada when the war began. The press and the political leaders gave many assurances that compulsion would not be employed. It was assumed that the response to the appeal of the Department of Militia would be adequate. There was a common expectation that the war would not last for twelve months and that at most Canada would provide an army of 50,000 or 100,000. In the first months of war more men offered themselves that we could arm and equip. In the course of ten weeks over 30,000 had embarked at Quebec for England. Among these were many British-born, instant in response to the call to arms, and peculiarly conscious of the danger which threatened the mother country. It was natural that they should predominate in the first Canadian contingent. If there had been immediate danger to Canada, such as that to which the old countries were exposed, the enlistment of Canadians would have exceeded all other elements of the population. But notwithstanding that the causes of the war lay in Europe natives of Canada were numerous in the first overseas regiments. Many of those who enlisted as officers made great sacrifices. Many who enlisted as privates made even greater sacrifices. They abandoned responsible and remunerative positions and the certainty of commissions if they had sought to avoid service in the ranks. All put life at stake. In those heroic battalions East and West, Quebec and Ontario, were represented, and whether English-speaking or French speaking they displayed valor and endurance in the field.

XVI.

From month to month and from year to year the call for men has been continuous and insistent. When we had organized an army of 100,000 another 100,000 was demanded. When 200,000 had enlisted there was an

appeal for 300,000. When 350,000 had enrolled a Canadian contribution of 500,000 was authorized. By voluntary enlistment 430,000 men were secured and 332,000 of these have crossed the sea. In all the long span of human history there is nothing more romantic and majestic than this great gift of manhood from the new world to restore freedom in the old. Even when the bells ring for peace many of those who left Canada in the pride of youth and strength will not come back. The loss is grievous even though they were where they should have been when they fell. The casualties in the Canadian army exceed 100,000 and 30,000 sleep in France and Flanders. Many of those in the trenches have borne the strain and shock of war for years, separated from wives and children, from fathers and mothers, from all the associations and interests which give normal life zest and value. They have no obligation to country or Empire which does not lie as clearly upon all of us. If we deny the support which they need we shall be dishonored.

If ye break faith with us who die,
We shall not sleep though poppies grow
In Flanders' fields.

XVII.

In Canada as in Great Britain we enrolled a great army under the voluntary system. If it had been said a few years ago that the Dominion could secure 400,000 men for a war in Europe the statement would have been treated with derision. But the fact that voluntary enlistment has been so satisfactory is an argument for, not against, a compulsory draft. The need for selection is more imperative. Such great sacrifices demand our last effort to ensure that they shall not be in vain. The magnitude of the enlistment emphasizes the danger and the vital interest of Canada in the issue. It is admitted by the authorities that in a few months all available reinforcements will be exhausted. Appeal and persuasion have ceased to bring any considerable response, although not wholly without effect. There is no prospect of peace in the near future. We must, therefore, gradually withdraw from the war as our regiments become ineffective fighting units or supply such fresh troops as will meet the loss and wastage. There is no suggestion that fresh troops should be withheld. Even those who oppose the draft declare that adequate reinforcements must be provided. It may be that compulsion would not

have been applied in Canada if voluntary recruiting could have been maintained, but with comparative failure of voluntary recruiting and little prospect of revival it is curious that the draft should be opposed if the necessity for reinforcements is admitted.

XVIII.

In 1863 Lincoln prepared an opinion on the draft for the Civil War in which he said, "At the beginning of the war, and ever since, a variety of motives, pressing some in one direction and some in the other, would be presented to the mind of each man physically fit for a soldier upon the combined effect of which motives he would, or would not, voluntarily enter the service. Among these motives would be patriotism, political bias, ambition, personal courage, love of adventure, want of employment and convenience or the opposites of some of these. We already have, and have had in the service, substantially all that can be obtained upon this voluntary weighing of motives. And yet we must somehow obtain more or relinquish the original object of the contest, together with all the blood and treasure already expended in the effort to secure it. To meet this necessity the law for the draft has been enacted. You who do not wish to be soldiers do not like the law. This is natural, nor does it imply want of patriotism. Nothing can be so just and necessary as to make us like it if it be disagreeable to us. We are prone, too, to find false arguments with which to excuse ourselves for opposing such disagreeable things. In this case, those who desire the rebellion to succeed, and others who seek reward in a different way, are very active in accommodating us with this class of arguments." He added, "The republican institutions and territorial integrity of our country cannot be maintained without the further raising and supporting of armies. There can be no army without men. Men can be had only voluntarily or involuntarily. We have ceased to obtain them voluntarily, and to obtain them involuntarily is the draft—is conscription. If you dispute the fact, and declare that men can still be had voluntarily in sufficient numbers, prove the assertion by yourselves volunteering in such numbers and I shall gladly give up the draft. Or if any one of you will volunteer he for his single self will escape all the horrors of the draft and will thereby do only what each one of at least a million of his manly brothers have already done. Their toil and blood has been given as much for you as for themselves. Shall it all be

lost rather than that you, too, will bear your part? I do not say that all who would avoid serving in the war are unpatriotic, but I do think every patriot should willingly take his chance under a law made with great care in order to secure entire fairness.”

XIX.

The situation that Lincoln describes is very much the situation in Canada. The blood that was shed by valiant Canadians at Ypres, and Givenchy and Festubert and on the Somme, at Vimy Ridge and before Lens, will have been shed in vain if an inglorious peace is imposed upon Britain and her Allies and the German people strengthened in allegiance to a dynasty which will vex mankind with its pretensions, conspiracies and infamies until it is destroyed. Moreover, as long as Germany has power to fill the earth with apprehension Governments will continue their eager competition in armaments and high expenditures for defence. The war is for safety as well as for freedom, and upon its result the free institutions of Canada depend. If it was the unanimous judgment of Parliament that Canada should enter the war, and if among the people there was universal approval of the action of Parliament, how can we withdraw until victory is achieved? How can we continue in the war unless we can maintain and reinforce the regiments in the field? How can we get men except by command of the State when the persuasion of the State has ceased to be effective? There are those who talk wildly about “driving men to slaughter.” But more than 400,000 of the sons of Canada have driven themselves to “slaughter,” and because they have done so our homes and institutions have been secure.

XX.

The Military Service Act only requires that those among us who can best be released from the occupations in which they are now engaged shall serve in the field under conditions as honorable as surround their fellow Canadians in uniform and under regulations no more onerous or exacting. The Militia Act as amended in 1906 provided that the Government could place the militia “on active service anywhere in Canada and also beyond Canada for the defence thereof at any time when it appears advisable so to do by reason of emergency.” Enough has been said to reveal an emergency in which

nothing less fundamental is at stake than the existence of Canada as a free country. If Germany should triumph we would not have a choice between Independence and British Connection. We would pass under German sovereignty. There would be no protection under the Monroe Doctrine. If Germany should not be conquered the United States, in arms against the Germanic alliance, would be involved in the common defeat of the Allies. Washington would be as powerless as London or Ottawa to determine the future political status of the Canadian people. Recalling the desperate valor of Canadian soldiers in many battles with the best troops of Germany, is it likely that Ontario or Quebec or any other Canadian province would escape the hard fate of Alsace and Lorraine or receive a greater portion of mercy than the harassed Polish subjects of the Kaiser? Clearly, therefore, the Canadian regiments are as surely defending Canada in France and Flanders as though they were actually resisting invasion along the St. Lawrence.

XXI.

By the Militia Act it was provided that “if at any time enough men do not volunteer to complete the quota required the men liable to serve shall be drafted by ballot.” Chiefly because of this provision the Militia Act was amended or superseded by the Military Service Act. It was manifest that selection by ballot would continue and multiply the inequalities produced by voluntary recruiting. Occupations and industries embarrassed by scarcity of labor would suffer still further, and physical fitness for war would be the general test of eligibility. It was, therefore, declared that “by reason of the large number of men who have already left agricultural and industrial pursuits in Canada to join the Expeditionary Force as volunteers, and of the necessity of sustaining under such conditions the productivity of the Dominion, it is expedient to secure the men still required, not by ballot, as provided in the Militia Act, but by selective draft.” Other provisions of the Act divide the available manhood of the country into six classes ranging in age from 20 to 45 and subject to selection according to military necessity, number of dependents and order of physical fitness.

XXII.

Under national service “conscript” has no invidious meaning. It is expunged from the language. As Lincoln said, failure to volunteer does not necessarily imply want of patriotism. Who has the right to judge his neighbor? Who fully understands his neighbor’s position? If we think of our school days we will recall the boys who had a natural instinct for fighting. We will think, too, of those who shrank from rough physical encounters, and were almost suspected of actual cowardice. But how often in emergencies those under suspicion of cowardice revealed courage and daring at least equal to their more pugnacious comrades. They would, perhaps, be the last to join a volunteer fire brigade but, if occasion required, they would fight a fire as courageously and resolutely as their adventurous associates. The new regiments to go forward under the Military Service Act will perform deeds of valor equal to any that have glorified Canadian arms. There will be Military Crosses for many of those who found it hard to decide between private and public duty. “I will give unto this last even as unto thee.”

XXIII.

Under national service the State calls all its manhood to arms but relieves from odium and suspicion all those who can better serve its interests on the farms, in the factories, or in other necessary civil activities. The Military Service Act of Canada, as has been said, was passed by Parliament in obedience to a general public demand and in assertion of the Government’s deliberate conviction that only by selective draft could the necessary reinforcements for the army in France be obtained and the orderly continuance of production and industry assured. In the machinery for applying and enforcing the measure there are ample safeguards against partiality, injustice or partisanship. The Military Service Council has been constituted to advise and assist in the administration and enforcement of the Act. The Deputy Minister of Justice is the chairman of the Council, and the other members have been chosen equally from the two great political parties. The advice of the Council is sought in order to ensure that the Act will be administered with just and equal regard to the interests of all classes of the community, and in all questions affecting the draft, requiring the consideration of the Governor General or the Minister of Justice, the conclusions will be reached in consultation with the Council. Moreover, the provincial registrars and the local tribunals receive instructions from the

Council as to the manner in which their duties are to be discharged; and, while the local tribunals exercise their judicial functions with perfect independence, so far as concerns the determination of individual cases, they may nevertheless refer to the Council for direction or advice upon general questions of doubt or difficulty. Provincial tribunals, chosen from the judiciary of the various provinces, are provided for resort by those who are dissatisfied with decisions of the local tribunals; and, in order to ensure uniform treatment of claims for exemption, as well as sympathetic and consistent consideration alike of local and national conditions, an ultimate appeal is authorized to Mr. Justice Duff, a distinguished member of the Supreme Court of Canada.

XXIV.

The scruples of those belonging to recognized religious denominations which forbid military service will be respected. All those whose services in the occupations in which they are now engaged, whether agricultural, industrial or commercial, are essential to the national interest or whose business or domestic responsibilities are so onerous that serious hardship would result if they were enrolled, are entitled to conditional exemption. There is, however, no provision that any occupation or industry shall be absolutely exempted. Each individual claim for exemption must be considered on its merits, but the general dispositions of the law are such as to ensure that civil occupation will compete successfully with military service in any case in which it is established that the withdrawal of the man from his civil occupation would materially diminish the output or production, or seriously impair the service necessary for the maintenance or efficiency of the expeditionary force, or for the support of the people at home. It will readily be perceived, having regard to this principle, that the supply of useful farm labor must not be substantially diminished since food production is so vital not only to the inhabitants of Canada, but to the armies, to Great Britain and to the allied countries within the actual area of war; and also because the volume of exports must be maintained, for upon these greatly depend the national revenues and the ability of the Dominion to provide credits for the mother country. More and more increasingly Britain's purchases in Canada will be measured by the amount of credit that Canada can supply. The huge war burdens of Britain, and the immense

obligations assumed for the allies have strained her financial resources; and in proportion, therefore, as we can afford relief, we will render service secondary in importance only to reinforcement of the army.

XXV.

There is reason to believe that the selective draft will operate with greater equality than has distinguished voluntary recruiting in the townships. Doubtless there are farms from which the only son has gone to the Front, while from other farms the men who could have gone have exercised the option which they had to remain at home. Such inequalities will be avoided under the draft system, and the men will be taken who can best be spared. If in any occupation, be it that of the farmer, the miner, the skilled artisan or the mechanic, there be men available for military service who for the present are not needed in their ordinary pursuits, these will be required to serve; but it will be the duty of the tribunals, as much to uphold a natural title to exemption, as to reject a claim which cannot compatibly with the national interest be established. Professional and literary men as well as men employed at manual occupations, and those engaged in directing them, may seek exemption by reason of the importance to the community of the work in which they are habitually engaged and which would in a material degree remain undone if they were taken. The State will first seek those who have no dependents, but the fact that a young man is unmarried will not be conclusive evidence against his exemption. He may hold a position for which he has peculiar qualifications, and in which his service is essential to the prosperity or comfort of the community. It is not possible to review here the various considerations which may arise with respect to individuals engaged in different callings each presenting questions peculiar to itself, but it is intended that in all cases the tribunals shall afford protection and assume the task, be it difficult or otherwise, of relieving an applicant from the anxiety of an embarrassing personal decision. No doubt there are many young men in Canada who should not have waited until compelled to serve, but there are also thousands who have chafed and fretted because they could not enlist, and whom it would be grossly unjust to describe as “slackers” or “shirkers.” Reflection upon these considerations emphasizes the defects of the voluntary system and suggests the essential justice and fairness of national service.

XXVI.

The first call will be for men between the ages of 20 and 34, who are unmarried or are widowers without children, and all belonging to this class must within the period limited by the proclamation report for service or apply for exemption from service. Convenient arrangements have been made, and notified to the public, whereby these reports and applications may be submitted through the post without loss of time or expense to the persons who are required to report or apply. Medical boards have been established at convenient centres for determining the physical qualifications of all men within the class. It is advisable that each man affected by the call should make up his mind as to whether he will report for service or apply for exemption and promptly act in accordance with his resolution. No possible advantage, either in obtaining exemption or as to the time for entering upon active service, will be gained by delay; on the contrary, a man who delays may suffer some unnecessary inconvenience and loss of time in the attendance which will be required, if his report or application be postponed until near the expiration of the period defined by the proclamation. The importance of immediate appearance before the Medical Boards which will sit at every centre of mobilization is apparent. Until men have undergone medical examination they cannot know whether or not their services will be required. Certificates of physical unfitness from the Medical Boards will be accepted by the exemption tribunals without further investigation. But anyone dissatisfied with the decision of a Medical Board may nevertheless invoke the judgment of the tribunals upon his physical condition. Under the provisions of the Act only 100,000 men can be drafted. The Militia Department is anxious that only those of undoubted physical fitness shall be accepted. Unfit men reduce the efficiency of the army and become charges upon the country while still equal to civil duties. The Medical Boards, therefore, are under as great obligation to reject the unfit as they are to declare the soundness of any who may seek to escape by misrepresenting their physical condition. It is not suggested that there will be many cases of evasion or misrepresentation. We have had so many examples of persistent and even pathetic endeavor by those of doubtful physical vigor to enlist that the Medical Boards will have to guard against the unfit rather than to exercise vigilance against deceit and imposition.

XXVII.

It has been said that failure to volunteer does not necessarily imply want of patriotism, but it will be hard to find any decent excuse for men who neglect to register under the Military Service Act. There is assurance of consideration for those in difficult circumstances. There is certainty of exemption for adequate reasons. Failure, therefore, to respond to the State's appeal will imply want of patriotism and expose the recalcitrants to compulsion in its ancient and more odious significance. The Government cannot be partial towards individuals or classes or communities. There is no provision for the purchase of substitutes such as unfortunately occurs in the Canadian Militia Act of 1906, and which constituted a flagrant defect in the draft as applied in the American Civil War. Rich and poor are on a common level. Equal in citizenship, from all equal service and sacrifice are required. As reinforcements are needed those who have been found liable and fit for service will receive notice to report at the nearest mobilization centre. Neglect of the summons will expose offenders to a maximum sentence of five years' imprisonment at hard labor. Nor will any civil punishment relieve such offenders from the performance of their military duties. All sentences will be imposed ordinarily by the civil magistrates but in cases of refusal or wilful neglect to report for duty the military authorities may inflict the severe penalties due to deserters.

XXVIII.

A direct obligation rests upon employers to assist the registration tribunals. They will fail in patriotism and public spirit unless they encourage those in their service to enroll. They will fail as surely if they demand exemption for employees of military age and physical fitness who can be released without serious detriment to the enterprises with which they are connected or who are connected with enterprises of inconsiderable national significance. It is assumed that in many cases applications for exemption will be made by employers or by relatives rather than by those liable to military duty. The evidence of employers that men are indispensable in their civil occupations will generally be necessary to secure favorable judgment. In Great Britain many employers furnished lists of those whom they desired to retain and appeared on their behalf before the tribunals. No doubt this will also be the

general practice in Canada, although the right of personal appeal must be regarded as proper and absolute. There will be those whose circumstances peculiarly justify exemption for whom no one else can appeal. While the great and immediate object is to secure reinforcements for the expeditionary forces, selection without injustice to individuals or unwise interference with essential industries is the definite duty and obligation of the tribunals.

XXIX.

In Great Britain there has been much controversy and some anger over the “disabilities of conscience.” Men have been found willing to fabricate “conscientious scruples.” Of these an official under the Military Service Acts justly speaks with severe reprobation, and he emphasizes “the bitterness with which a man who is required to leave wife, children and livelihood, and does so with a quiet dignity of which I have been a respectful witness in hundreds of cases, regards a conscientious objector, remaining at home and enjoying the fruits of other men’s sacrifices.” He accepts religious objection to combatant service as legitimate ground for exemption, but would require from such objectors the performance of other duties which war creates. Conscientious objections are apt to emerge as the demand for men becomes more searching and opportunities for escape from military service upon other grounds become more remote. And, in order to guard against imposition, since “having in your mind is nothing, for it is common learning that the thought of man is not triable,” conscientious objection has been made a ground of exemption in Canada only for those who belong to some well recognized religious denomination which forbids combatant service by the articles of its faith in effect when the Military Service Act was passed. Those who are able *bona fide* to place themselves in this category escape upon statutory grounds. It would be unwise and unjust if this were not so. But while religious objection is a lawful ground for exemption, it affects combatant service only, and such objectors who enjoy the privileges, although refusing the duties required of the ordinary citizen, remain liable for any other branch of the national service.

XXX.

If employers co-operate heartily and unselfishly with the tribunals any unnecessary delay in registering for medical examination and exemption will be avoided. The selective draft tests the patriotism of all classes. An employer who denounces “shirkers” and yet seeks to hold men who are not essential to his business is as deaf to the appeal from the trenches as he who would evade the call to the colors. If men of means and position, who by reason of age or other circumstances are not subject to the draft, refuse to sacrifice convenience or profit for flag and country, how can they ask other men to risk life itself? It is not suggested that employers should practise intimidation or coercion, but only that they should require their staffs to register and discourage dubious petitions for relief. We may not regard sacrifice as the exclusive duty and privilege of soldiers. Men may not live, write and speak as though the war had no relation to themselves or as though they knew no higher duty than to exploit the apprehensions, anxieties and miseries inseparable from war for selfish, personal advantage. There cannot be war without sacrifice for all elements and interests, and he is the best patriot who bears inevitable losses and distresses with fortitude and by word and example maintains the spirit and unity of the Commonwealth.

XXXI.

No greater effort is required from Canada than from the other nations whose freedom and independence are assailed. If we falter we betray those who have “borne the battle” for us. We cast the splendor of their sufferings and sacrifices in shadow forever. They loved peace as much as we do. Life was as dear to them as it is to us. They cherished the ties of home and family just as we do. They had affections as intimate and obligations as sacred as any that we feel or know. If they are deserted shame will be our portion in history. It will be said that the honor they won for us among the nations we meanly cast away and that we were unworthy of their chivalry, courage and sacrifice. We cannot escape comparison with Britain and Australia and New Zealand. If we deny obligation to the Empire or responsibility for the war we are still subject to judgment. At least we have a political connection with the Old World which the United States has not, and, therefore, cannot withdraw from a conflict into which our neighbors have entered through high concern for the decencies of civilization and the elementary rights of

mankind. To-day we command the world's respect and keep our own. To lose either would be to barter decency, dignity and glory for ease, discredit and humiliation.

XXXII.

If ever there was a struggle to keep men's faces turned towards the sun it is this in which we are engaged. Never were free men so bound to enforce the decree that they who take the sword shall perish by the sword. If we fail now the earth will enter upon a long era of unrest and tumult for it is inconceivable that the nations which are withstanding the German assault will ever surrender control over their own destinies whatever be the cost in life and money now or in the future. We must also remember how Germany makes war and steel ourselves to suffer and endure until the despots who would master the world are driven out of the lands they have seized and defiled and beaten into submission. In "The Retreat from Mons," by Major A. Corbett Smith, there is this passage: "We have seen from the very beginning that 'chivalry' and 'fair play' are words unknown to the Germans. To them nothing matters but to win, preferably by foul means. So, on the very first day, British soldiers were terribly undeceived. They saw German infantry advancing to the attack behind a screen of Belgian women and children, driven on at the bayonet point. From then onward we lost hundreds of gallant men simply through their feelings of humanity towards wounded enemies, being shot at by other Germans, or being treacherously shot or stabbed by the very men to whose lips they were holding a flask of water. And yet, with such examples before them of their comrades' fate, the sense of humanity and chivalry was never dulled. Despite the stringent orders on the subject, the men, even now, hesitate to fire when the enemy raises a white flag, and will always, whenever possible, succor a wounded German lying before the trench. These are the men who have only, as yet, learned of German treachery by hearsay evidence. But there are others. There are companies and battalions who know from ghastly experience. These men adopt other methods."

XXXIII.

Major Corbett Smith continues: "But nothing I can write will make people at home understand what this war really is. Nothing short of actual experience can do that. Stay, perhaps there is one thing; the genius of Louis Raemaekers. He, at least, by his cartoons, is bringing home to millions the hideous meaning of this war. And not only of this war, but of all modern war. I would have a volume of his cartoons distributed gratis by the Government to every household in the kingdom. I would have half a dozen of the cartoons thrown upon the screen in every cinema-house at every entertainment. The people would shudder with horror, but they would see them and learn what Germany is and what war means. Apart from this, I hold it to be the sacred duty of every man and woman who can use a pen to advantage, or who can command the attention of an audience, to make known this meaning. To cry from the housetops what is this foul thing which Germany has thrust upon the world, and to show the people why and how Civilization must crush it out for ever. There is no greater honor to-day that a man may wear—alas, there are but few left to wear it!—than the honor of having served his King and Country in France throughout August and September, 1914. Just that. He needs no decoration, no 'mention.' He served through the 'Retreat from Mons.' In days to come our children, our children's children, will point with pride to that one little word on the regimental color, 'Mons.' For in that single word will be summed up the liberation of the world. It was the victory of the Marne which won for Civilization that freedom, but it was, under God's hand, the British Navy, the stand of Belgium, and the 'Retreat from Mons' which made that victory possible."

XXXIV.

But the victory for freedom has not yet been fully won. The foe, in turn, retreats but he contests every foot of ground, and the advance of the allies is as costly as it is glorious. In this advance the soldiers of Canada have fought as bravely as their comrades of Britain, France, Belgium and Australia. They call for the reinforcements which the draft will supply in confidence that we at home are as jealous for the reputation of Canada as they, and as determined to prosecute the war until complete victory is achieved. The call comes from those who gave themselves in answer to our appeal. They are not asking to be taken out of the trenches. They do not seek consideration or

relief for themselves. They ask only that the gaps in their ranks shall be filled and we who sent them away to guard our honor and protect our institutions cannot do less than resolve that the response to their appeal shall be speedy and adequate. It may be that the day is still remote “when peace shall over all the earth her ancient splendors fling,” but somewhere in the distance there is a hilltop bathed in the sunshine of victory and radiant with the glory of the morning.

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